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February 13, 2015

BY ECF AND US MAIL

Honorable Eric N. Vitaliano
United States District Judge
Eastern District of New York
225 Cadman Plaza East
Brooklyn, NY 11201

Re: Kamaal Bey and Ta-Muur Bey v. Police Officer Alex Viera, et al.
14-cv-4519 (ENV) (SMG)

Your Honor:

Enclosed herein for the Court's endorsement please find a fully executed Stipulation and Order of Dismissal of the above-referenced matter.

Respectfully submitted,

Ashley R. Garman

Encl.

cc (w/encl.): Baree N. Fett, Esq. (VIA ECF)
Attorney for Plaintiffs

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
KAMAAL BEY and TA-MUUR BEY,

Plaintiffs,

-against-

POLICE OFFICER ALEX VIERA, ET AL.,

Defendants.
----- X

**STIPULATION AND
ORDER OF DISMISSAL**

14-cv-4519 (ENV) (SMG)

WHEREAS, the parties have reached a settlement agreement and now desire to resolve the remaining issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice; and

2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

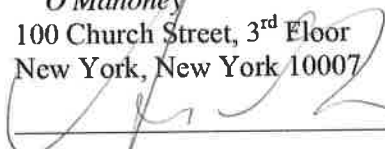
Dated: New York, New York
Feb 13, 2015

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By: 

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Attorney for Plaintiff

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O'Mahoney*
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By: 

Ashley R. Garman
Assistant Corporation Counsel

SO ORDERED:

HON. ERIC N. VITALIANO
UNITED STATES DISTRICT JUDGE

Dated: _____, 2015